

**SUPREME COURT OF PAKISTAN**  
(Appellate Jurisdiction)

**PRESENT:**

Justice Jamal Khan Mandokhail  
Justice Irfan Saadat Khan

**Criminal Petition No.709 of 2026**

against the order dated 30.03.2026 of the Lahore  
High Court, Lahore passed in CrI. Misc. No. 5171-  
B of 2026

Muhammad Usman Yousaf

...Petitioner(s)

***Versus***

The State through D.A.G of Pakistan, Lahore and ...Respondent(s)  
another

For the Petitioner(s) : Rana Habib-ur-Rehman Khan, ASC  
(V.L. Lahore)  
Syed Rifaqat Hussain Shah, AOR

For the State : Raja Muhammad Shafaqat Abbasi,  
DAG  
Mr. Ghulam Murtaza, Inspector FIA  
Mr. Safa Afzal, SI/FIA

Respondent No.1 : Mr. Muhammad Khalil, ASC  
(V.L. Lahore)

Respondent No.2 : Mr. Muhammad Usman, ASC  
(V.L. Lahore)  
Mr. Ahmed Sohail Khakwani, CLO  
SNGPL

Date of Hearing : 12.05.2026

**ORDER**

**IRFAN SAADAT KHAN, J.**— Through this order, we intend to dispose of the instant petition for post-arrest bail arising out of FIR No. C-23/2024, registered on 05.03.2024 at 02:45 p.m. at Police Station FIA Corporate Crime Circle, Lahore. The case involves allegations under Sections 34, 109, 409, 420, 468, and 471 of the Pakistan Penal Code (PPC), read with Section 5(2) of the Prevention of Corruption Act (PCA), 1947, in relation to a multi-year transactional occurrence that allegedly took place during a period spanning from 2013 to 2023.

2. FIR was lodged on a written complaint by Ijaz ul Nabi, Chief Officer (Admin), Sui Northern Gas Pipelines Limited (SNGPL), Lahore. As per FIR various employees and officials of SNGPL allegedly colluded and entered into a conspiracy to misappropriate, embezzle, and steal valuable inventory and materials, specifically Mild Steel (MS) Pipes and Polyethylene (PE) Pipes measuring 245.331 KM, stored at the SNGPL Center Base Store (CBS) Manga. This long-running administrative misappropriation was stated to have caused a massive financial loss of approximately Rs. 366.63 million to the national exchequer. The petitioner, Muhammad Usman Yousaf, who was deployed as a Store Supervisor at the relevant store was arrested by the law enforcement agency on 20.04.2025. Following his structural interrogation and the conclusion of physical remand, he was remanded to judicial custody at District Jail, Lahore. The petitioner's post-arrest bail application was subsequently dismissed by the learned Special Judge (Central-I), Lahore, vide order dated 10.12.2025, and his subsequent prayer for bail was turned down by a learned Single Judge in Chambers of the Lahore High Court, Lahore, vide order dated 30.03.2026 in CrI. Misc. No. 5171-B/2026, leading to the filing of the instant petition before this Court.

3. Rana Habib-ur-Rehman Khan, learned ASC appearing on behalf of the petitioner, Muhammad Usman Yousaf, contended that the petitioner is innocent as he has no independent authority to release materials and has been falsely implicated in the instant case by making him a scapegoat for deep-rooted institutional systemic anomalies. He emphasized that the entire case against the petitioner is completely reliant on complex ledger systems, multi-year corporate audits and stock registers, which require detailed validation and rigorous verification determinable at trial stage only. He further stressed that

the investigation is complete, all the relevant documentary records have already been taken into official possession by the state and no physical recovery remains to be effected from the petitioner. The learned counsel emphasized on the rule of consistency and parity, pointing out that co-accused namely Muhammad Amir Asghar, Muhammad Saleem Irshad and Taqaduss Butt, who were ascribed identical or far more definitive administrative and regulatory oversight roles in the managerial chain of the base store, have already been granted concession of bail by the High Court. He further argued that the alleged offence commenced in 2013, a time when Section 5(2) of the PCA, 1947, did not fall within the strict prohibitory clause of Section 497 of the Code of Criminal Procedure (Cr.P.C.) and that subsequent statutory transformations enacted in 2021 cannot be deployed retrospectively to abridge the petitioner's fundamental liberty under Article 12 of the Constitution of Islamic Republic of Pakistan, 1973. He thus prayed that the case falls within the ambit of 'further inquiry' under Section 497(2) of the Cr.P.C..

4. On the other hand, the learned Deputy Attorney General, duly assisted by the Chief Law Officer of SNGPL, have opposed the instant bail petition on the grounds that the amount embezzlement is huge impacting public funds which runs in hundreds of millions of rupees. They contended that the accused was an integral component of the logistical framework at the Manga store, responsible for day-to-day item verification and that the sheer scale of the white-collar economic crime takes the matter outside the realm of ordinary equity. They argued that the actions of the accused caused a staggering loss to the national exchequer and that such grave institutional fraud disentitles him to any discretionary relief or leniency hence they prayed that this bail petition may therefore be dismissed.

5. We have heard the learned counsel for the parties at length and perused the available record. A tentative assessment of the record reveals that the case against the petitioner is purely documentary and systemic, spanning over more than a decade. On a tentative assessment it seems that the prosecution has failed to demonstrate that the specific role played by the petitioner was distinct from or more severe than, that of the co-accused individuals, who are already on bail. The record apparently establishes that co-accused individuals holding identical or more definitive positions in the administrative hierarchy have been bailed out, denying the same treatment to the petitioner would therefore not be justified. Furthermore, determining whether the petitioner possessed "sole decisive authority" or acted as a "mere subordinate" following administrative routines is a matter of probe/enquiry that can only be resolved after recording of the evidence at the trial stage. Hence in our view the matter requires further inquiry making this case one of further inquiry within the meaning of Section 497(2) of the Cr.P.C..

6. We, therefore, without touching upon the merits of the case, convert this petition into an appeal and allow the same. The appellant is granted post-arrest bail, subject to his furnishing bail bonds in the sum of Rs. 500,000/- (Rupees Five Hundred Thousand only), with one surety in the like amount to the satisfaction of the learned Trial Court. Needless to state that the observations made in this order are only tentative in nature and shall not influence the merits of the case of either party during the trial.

7. These are the reasons of our short order dated 12.05.2026, which is reproduced hereinbelow:

*"For reasons to be recorded later, this petition is converted into an appeal and allowed. The appellant is granted bail after arrest*

*subject to furnishing bail bonds in the sum of Rs. 500,000/- with one surety in the like amount to the satisfaction of the learned Trial Court."*

Islamabad  
12.05.2026

APPROVED FOR REPORTING'  
*Arshed/Zainab Qazi, L.C.*